

Tentative Rulings for June 23, 2026 Department M205

**To request oral argument, you must notify
Judicial Secretary Kari Gates at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M205 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 571 6184**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2405655	TIMM VS AMERICAN HONDA MOTOR CO., INC.	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Moving party: Plaintiff Deborah Timm

Responding party: Defendant American Honda Motor Co., Inc.

Motion filed: 5/4/2026

Opposition filed: 6/9/2026

Reply filed: 6/15/2026

Attorneys' fees may be awarded to a prevailing party as costs when authorized by contract, statute or law. (CCP § 1033.5(a)(10).) The Song Beverly Act provides, "[i]f the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees, based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civil Code §1794(d).)

Defendant does not dispute that Plaintiff is the prevailing party. As such, she is entitled to fees and costs under the Song Beverly Act and the settlement.

Lodestar:

The lodestar method is used to calculate fees under section 1794(d). (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 997.) The lodestar amount is based on the time spent and reasonable hourly rate. (Id at 998.) The prevailing buyer has the burden of showing the fees incurred were allowable and reasonably necessary to the conduct of the litigation. (*Goglin, supra*, 4 Cal. App. 5th at 470.) Verified billing records constitute prima facie evidence that the fees were reasonable. (*Hadley v. Krepel* (1985) 167 Cal. App. 3d 677, 682.) Once the prevailing party has made a prima facie showing that its fee request was fair and reasonable, the burden of proof is on the opposing party to show by admissible evidence that the fees requested were unreasonable, either by the number of hours or the hourly rate or both. (*Maughan v. Google Technology* (2006) 143 Cal. App. 4th 1242, 1261.)

Billing Rates:

A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The court may rely on its own experience in determining whether the hourly rate sought is reasonable. (*EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774.) Counsel requests a rate of \$500/hour for attorney Klitzke and \$200/hour for paralegal Turner. Mr. Klitzke asserts that he has been practicing since 2015. (Klitzke Dec.¶ 15.) Based on the experience of this Court, these rates are comparable to, or lower than, those generally awarded in lemon law cases in Riverside County. Defendant argues that the rates should be reduced to \$374 and \$100 respectively. However, it provides no evidence to support these rates which appear to be low. The rates requested are approved.

Hours Incurred

Plaintiff claims that counsel billed 38.2 hours on this case. Counsel produced extensive billing records showing the time for each task. Generally, billing records are given a presumption of credibility. (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396.) “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.)

Defendant argues that Plaintiff improperly sees fees at the \$200 paralegal rate for 1.6 hours (\$320) for work that is purely clerical or administrative. Necessary support services, including secretarial work, may be included in an attorney fees award. (*City of Oakland v. McCullough* (1996) 46 Cal. App. 4th 1, 7.) However, “purely clerical or secretarial tasks should not be billed at a paralegal rate, regardless of who performs them.” (*Missouri v. Jenkins* (1989) 491 U.S. 274, 288; FN 10.) As such, Defendant has not established that these fees should be stricken in their entirety, although the rate should be reduced to \$125 to reflect a secretarial rate. The overall fee request should be reduced by \$120.00 to reflect the new rate for clerical work.

Multiplier:

Plaintiff requests 1.10 multiplier. The court then has the power and the duty to enhance, or to reduce, the lodestar through the use of multipliers, by taking into consideration factors such as the novelty and complexity of the issues, the skill and expertise of counsel, the extent that the litigation precluded other employment and the contingent nature (or risk) of nonrecovery.” (*Robbins v. Alibrandi* (2005) 127 Cal.App.4th 438, 448.) A contingent fee is generally higher than a fee for the same legal services paid as they are performed to compensate for the loan of those services and risk of loss. (*Ketchum v. Moses* (2001) 24 Cal. 4th 1122, 1132.) “However, although taking a case on a contingent fee basis may support an award of a multiplier, it does not compel, it.” (*Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal. App. 4th 1179, 1188.) Here, the contingency risk was reduced due to the fee-shifting provision of the Song Beverly Act. The request for multiplier is DENIED.

Litigation Costs and Expenses:

“Except as otherwise provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (CCP § 1032(b).) Generally, CCP § 1033.5 enumerates categories of costs that are allowable and items that are not allowable. The Song Beverly Act allows a prevailing buyer to recover costs and expenses which are reasonably incurred in connection with the commencement and prosecution of the action. (Civil Code §1794(d).)

Plaintiff included a Memorandum of Costs, requesting \$605.76 in costs and expenses. Klitzke Dec., Ex. 2.) Defendant does not challenge any of the cost items. Accordingly, the Memorandum of Costs is approved in its entirety.

The Motion for Attorney's Fees and Costs is GRANTED in part. Plaintiff should be awarded \$17,900 for attorney's fees and \$605.76 in litigation costs. The request for multiplier is DENIED.

Plaintiff/Moving party to submit an order to the court consistent with this court's ruling.

2.

CASE #	CASE NAME	HEARING NAME
CVME2500875	LVNV FUNDING LLC VS GARCIA GARCIA	MOTION TO AMEND JUDGMENT

Tentative Ruling: Motion unopposed. Motion GRANTED. Judgment will be amended to reflect the correct amount. Court to sign the proposed amended order and judgment.

3.

CASE #	CASE NAME	HEARING NAME
CVME2504447	CAPITAL ONE, N.A. VS CREACY	MOTION TO VACATE DISMISSAL

Tentative Ruling: Motion unopposed. Motion GRANTED.

IT IS ORDERED that the dismissal as to ALVIRA CREACY entered on August 29, 2025 be set aside and vacated, and judgment entered in favor of Plaintiff CAPITAL ONE, N.A., and against Defendant ALVIRA CREACY, in the principal sum of \$7,267.00, and court costs in the sum of \$923.61 for a total judgment of \$8,190.61. Court to sign the proposed order and proposed judgment.

4.

CASE #	CASE NAME	HEARING NAME
CVME2509646	WELLS FARGO BANK, N.A. VS MERRIAM	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling:

Moving party: Plaintiff Wells Fargo Bank, N.A.
Non-Opposing party: Defendant Jean Marie Merriam
Motion filed: 3/10/26

On 7/16/25, Plaintiff Wells Fargo Bank, N.A. filed this collections action for (1) breach of contract and (2) breach of contract against Defendant Jean Marie Merriam for an unpaid credit card balance of \$19,215.26. On 10/3/25, Defendant filed an answer containing a general denial and 11 affirmative defenses. Trial is set for 8/6/26.

From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 855.) When a plaintiff is the moving party, the plaintiff has the burden to produce admissible evidence on each element of a cause of action entitling him to judgment. (Civ. Proc. Code, § 437c(p)(1).) The plaintiff does not have the burden to disprove affirmative defenses. (*Id.*) At that point, the burden shifts to the defendant to show that a triable issue exists. (*Id.*)